

SENATE No. 2703

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, November 13, 2025.

The committee on Higher Education to whom was referred the petition (accompanied by bill, Senate, No. 933) of Patricia D. Jehlen for legislation relative to the rights of faculty members at the University of Massachusetts, report the accompanying bill (Senate, No. 2703).

For the committee,
Joanne M. Comerford

SENATE No. 2703

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the rights of faculty members at the University of Massachusetts.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 75 of the General Laws is hereby amended by striking out section 4 and inserting
2 in place thereof the following section:-

3 Section 4. The trustees shall determine the time and place of their meeting. Nine
4 members shall constitute a quorum. Meetings of the board of trustees shall be subject to the
5 provisions of sections 18 to 25, inclusive, of chapter 30A; provided, however, that in addition to
6 the purposes set forth in said sections 18 to 25, inclusive, the trustees may hold an executive
7 session to consider the award of honorary degrees. The trustees may further hold an executive
8 session to consider the award of tenure to a member of the faculty, if the member who is being
9 considered for tenure in such executive session has been notified in writing, by the trustees, at
10 least 48 hours prior to the proposed executive session; provided, however, that notification may
11 be waived upon agreement of the parties; and provided, further, that the trustees shall hold an
12 open meeting if such member requests that the meeting be open. If an executive session is held,
13 such member shall have the following rights: (a) to be present at such executive session during
14 discussion or considerations which involve such member; (b) to have counsel or a representative

15 of the member's own choosing present and attending for the purpose of advising such member
16 and not for the purpose of active participation in said executive session; and (c) to speak one's
17 own behalf.